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BRIT290: Forging the Nation

8 December 2025

British Devolution: A Comparative Study

The United Kingdom's status as a monarchy has lent itself to a political structure of multiple nations, subject to the crown, however as the nation modernized into the parliamentary system the notion of the English still ruling all four nations faded, in the process called devolution. This leads us to the question: *How has devolution changed or reflected conceptions of national identity within the United Kingdom?* Devolution is a responsive mechanism to long-standing national identities within the nations of the United Kingdom, self-rule aspirations empowering Scottish, Welsh, and Northern Irish identities politically, while prompting new questions regarding English, and overall, British identity. This comparative study will survey the historical background of devolution, devolution's developments within each nation of the United Kingdom, a comparison with the United States' federal system, the impacts of Brexit on devolution and the overarching role of devolved authority in past and present British politics.

Devolution refers to the transfer of powers from a central governing authority to subordinate regional institutions, without dissolving the sovereignty of the central authority. In the United Kingdom (a historically unitary, centralized state) devolution since the late 1990s has created elected legislatures in Scotland, Wales, and Northern Ireland with self-rule in defined areas, while England's devolution has been limited to local and city levels. **Self-rule** in this context means a degree of autonomous governance by a regions own institutions, representative

of the will of the people within said region, as opposed to overarching "federal" laws from the United Kingdom Parliament (Westminster).

The United Kingdom formed through a union of many nations; through the 1707 Acts of Union, combining Scotland and England (Which had already incorporated Wales), and the 1800 Act of Union incorporating Ireland (which was later partitioned in 1921). This started an era where the United Kingdom was a centralized unitary state. However, notions of separate national identities and self-rule struggles persisted. In Scotland resentment from the 1707 union lingered, demonstrated by famous Scottish poet Robert Burns's famous line stating that the Scots were "bought and sold for English gold" (Black, 2010). In Ireland, demands for Home Rule (self-governance) emerged in the 19th century, leading to multiple home rule bills (one passed in 1914 was suspended due to World War I) and eventually the Irish independence movement and its following struggles. These early efforts highlight how aspirations for self-rule were tied to national identity: the Irish seeking to reclaim sovereignty, and the Scots and Welsh seeking recognition of their distinctiveness within the United Kingdom.

It was not until the late 20th century that formal devolution was seriously attempted within the United Kingdom. In 1979 referendums on creating assemblies within Scotland and Wales were held but failed (in Scotland because the required threshold was not met, and in Wales due to overwhelming "No" votes). The process of devolution stalled while the push for sovereign rule continued. This culminated in a turning point with political change in the 1990s: the new Labour government under Tony Blair embraced devolution as a way to modernize the United Kingdom's governance and accommodate national identities. Referendums in 1997 succeeded; a Scottish Parliament and Welsh Assembly (later Parliament, the Senned) were formed by United Kingdom Parliament passing the *Scotland Act (1998)* and the *Government of Wales Act (1998)*,

establishing these devolved structures. Meanwhile in Northern Ireland, peace processes led to the *1998 Belfast/Good Friday Agreement*, the political (devolutionary) implications of which were implemented via the *Northern Ireland Act (1998)* to create a power-sharing assembly within Northern Ireland (Stormont, Belfast)

These devolutionary reforms reflected both existing identity pressures and modern efforts to channel them for meaningful change. Nationalists outside of England saw devolution as either the first step or an alternative to complete independence. In Scotland, the Scottish National Party (SNP) had long been divided between "fundamentalists" who wanted immediate independence and "gradualists" who viewed devolution as a stepping stone or viable alternative (Black, 2010). At the time the ruling Labour Party's George Robertson famously proclaimed that devolution would "Kill [Scottish] nationalism stone dead" further stifling a need for independence within the Scots (Black, 2010). In this sense devolution has been a double-edged sword, as the question of independence has had increased force within today's divisive politics, however a true renewed call for a Scottish independence referendum have not materialized in part due to the very presence of the devolved Scottish Parliament. In Wales, national identity is strong culturally (in language, national symbols for example) but political nationalism has been historically weaker. The narrow vote for "yes" in 1997 indicated Welsh desire for increased recognition, but because of that vote Welsh devolution deepened. The Northern Irish cause however is distinct, as identities were polarized between Protestant British Unionists and Catholic Irish Nationalists, and the New Assembly had to balance both identities through mandatory power-sharing. In all cases, devolution both resulted in identity-based demands and in turn began shaping how people identify with their nation(s) and the United Kingdom as a whole.

Scotland has been at the forefront of devolution-driven identity politicization within the United Kingdom. The Scottish Parliament (in Holyrood, Edinburgh) opened in 1999, exercising increased power over areas in which they previously would only have a say in the overarching United Kingdom Parliament in Westminster. This devolution affirmed a shift of power away from Westminster to Edinburgh, with Scottish determinations in matters of education, health, law, and more (United Kingdom Parliament, 1998). This recognition, however, did not dampen calls for Scottish independence; if anything, it legitimized the independence movement. The Scottish National Party (SNP), a party founded in 1934 with the goal of Scottish independence, which had long struggled on the fringes of Westminster, regained relevance in the devolved era (Black, 2010). A pivotal moment in Scottish independence came with the *2014 Scottish Independence Referendum*, agreed upon following the SNP's electoral victories. Although 55% of the electorate voted "No" to independence, the campaign itself was a powerful expression of Scottish national identity. The very fact that the referendum occurred showed how far devolution has formed to represent the political agency of identity: the vote would not have occurred without the presence of a Scottish government to demand it. The referendum's aftereffects saw promises of further devolution, and new powers over taxation and welfare were transferred to Holyrood in the *Scotland Act 2016*. Even these new powers did not stifle calls for independence. During the United Kingdom wide BREXIT referendum in 2016 resulted in Scotland voting heavily (62%) to remain in the European Union, yet Scotland still ended up being removed from the Union due to the "Leave" vote majority across the United Kingdom, reigniting Scottish identity politics. This illustrates devolution's double-edged effect on identity: it gave Scotland a voice, but when that voice was overruled by the larger British result, many Scots felt their nation was not represented correctly, leading to aspirations of independence.

It is important to assert that not all Scots who assert a Scottish identity favor independence, though devolution has provided an intermediate outlet. Surveys show that only about 20% of people in Scotland choose “British” as their main identity (rest are primarily “Scottish”), a figure that has not changed since before devolution (Curtice, Phillips, Park, Bryson, & Clery, 2013). However support for outright independence, while significant, has fluctuated between 25-50% in recent years and has not became a unanimous ideas among those with strong Scottish identity (Curtice, Phillips, Park, Bryson, & Clery, 2013). This suggests devolution has allowed a growth of Scottish political confidence and distinct policy-making (“Scottish approach”) to issues like public health and education, without yet collapsing the dual identity that many Scots hold (Being both Scottish and British). Devolution in Scotland has both reflected a long-standing sense of Scottish nationhood and further solidified it by institutionalizing Scottish self-government (O'Neill, 2004). Calls for independence or federalization have been sparse and varying, but one thing is clear, Scottish independence in self-governance is key to Scotland’s role in and outside the Union.

Northern Ireland’s devolution is unique because it was born from a peace agreement and must continually balance two competing national identities. Unlike Scotland or Wales, where there is a broad sense of a single nation, Northern Ireland contains dualist identities: a significant unionist community (mainly Protestants) identifying as British and loyal to the United Kingdom, and a significant nationalist community (mainly Catholics) identifying as Irish and aspiring to unity with the Republic of Ireland. The Northern Ireland Assembly was created by the Good Friday Agreement in 1998 was explicitly designed to accommodate both identities. It is a power-sharing legislature in which the largest unionist and nationalist parties jointly form the government, and key decisions require cross-community consent. Devolution here was less about

a single regional identity seeking expression, and more about creating a neutral space where two identities could coexist and govern together. In that sense, devolution reflected the reality of Northern Irish identity: the population did not have a homogeneous “Northern Irish” identity politically (though interestingly, more people now embrace a mixed “Northern Irish” identity distinct from simply British or Irish) (O'Neill, 2004). Rather, the devolved Assembly had to manage identity conflict by giving both sides a stake in local governance. The effect of devolution on identity in Northern Ireland has been double-edged. On one hand, having local governance has given people (especially nationalists) a sense that they have ownership in decisions affecting their region, rather than being ruled directly by Westminster. This was critical in ending the Troubles. Nationalists could see the Assembly as a vehicle for Irish identity (for instance, promoting the Irish language or cross-border initiatives), while unionists saw it as confirming Northern Ireland’s place in the United Kingdom so long as the Assembly operates under the United Kingdom framework (with the principle of consent that Northern Irekand remains in the United Kingdom until a majority votes otherwise, explicitly stated in the Northern Ireland Act 1998 (United Kingdom Parliament, 1998)). On the other hand, the Assembly’s frequent suspensions during political crises (periods in the 2000s and again from 2017–2020, and most recently 2022–2024 over post-Brexit trade arrangements) underscore that identity tensions remain potent. When one side feels its identity or constitutional preference is threatened; for example, unionists angered by the Northern Ireland Protocol (an arrangement after Brexit that treated Northern Ireland differently from Great Britain) they have been willing to collapse the devolved institutions. This fragility shows that devolution has not fully reconciled the identities, but it at least provides a forum where the two communities negotiate power. Importantly, the Good Friday Agreement and devolution have made the principle of consent explicit: any change

to Northern Ireland's status (i.e., joining a united Ireland) requires majority consent via referendum. This assurance has done away with unionist fears and given nationalists a peaceful path to pursue their goal in the long term.

In terms of broader identity shifts, since devolution and peace, surveys indicate a decline in the proportion in Northern Ireland who call themselves "British" as their primary identity (48% in 2004 down to 39% by early 2010s) with more people embracing "Northern Irish" or dual identities (Curtice, Phillips, Park, Bryson, & Clery, 2013). Support for staying in the United Kingdom actually remains a majority view (the Union is still preferred by roughly 60% as of recent years), and support for immediate Irish reunification is relatively low (hovering around 15–20%) (Curtice, Phillips, Park, Bryson, & Clery, 2013). This suggests that devolution, by stabilizing day-to-day governance, may have reduced the urgency of the constitutional question for many, allowing a space for a hybrid identity to grow. Younger generations especially might feel less strict about one camp or the other. In summary, Northern Ireland's devolved government reflects the region's contested identities and how it has moderated them, but identity remains a delicate fault line that devolution must continuously navigate.

Wales's journey with devolution has been more gradual but still significant for national identity. The Welsh people have a distinct cultural identity, rooted in shared language and history, but political expression of Welsh nationalism was historically muted compared to Scotland's. The National Assembly for Wales (now Senedd Cymru, the Welsh Parliament) was established in 1999 with modest powers, in making secondary legislation without any tax levying power. This limited model demonstrated a more cautious approach, as the referendum to create the Assembly had passed only by a razor-thin margin (about 50.3% in favor). Merely having a national representative body for Wales was a milestone: it symbolized official recognition of the Welsh

populace, instead of just being a region. Over time, pressures grew to expand the Assembly's authority. Devolution in Wales was gradually strengthened; notably by the *Government of Wales Act 2006* granting primary law-making in certain fields, and the *Wales Act 2017* moving to a model similar to the Scottish Parliament. In 2020 the Assembly renamed itself to the Senedd (Parliament), underlining its status as a full legislature. A concrete indicator of Welsh devolution's maturation is the recent reforms within the Senedd. In 2024, on the 25th anniversary of devolution, the Senedd passed the *Senedd Cymru (Members and Elections) Act 2024* to expand the number of members from 60 to 96 switching to a more proportional electoral system (Senedd Cymru, 2024). This was a significant milestone for Welsh devolution and democracy, keeping the legislature in line with its increased responsibilities. This achievement shows how normal and accepted devolved self-rule has become within Wales; part of the national identity. No longer is Wales's Assembly seen as an experiment; it is now Wales's national parliament. In sum, devolution has nurtured a civic Welsh identity that coexists with British identity, even as more Welsh people see their governance as something that should reflect Welsh priorities and culture (O'Neill, 2004).

One of the striking asymmetries of United Kingdom devolution is that England, by far the largest nation of the United Kingdom, does not have its own devolved parliament or assembly. England was long conflated with the United Kingdom itself; British identity historically grew out of English dominance, and many English people simply identified as British. However, devolution elsewhere raised the **"**English Question**"**: who speaks for England? Over the past two decades, there have been limited moves toward English regional devolution and local self-rule, but not on a national level. In 1998, a London Assembly and Mayor were created for Greater London, restoring city-wide government to the capital. Since the 2010s,

successive governments have promoted city and regional devolution in England through “metro mayors” and combined authorities (e.g. Greater Manchester, West Midlands, etc.), largely focusing on economic development, transport, and planning powers. For example, the newly published *English Devolution White Paper: Power and Partnership* (2024) proposes to **“**extend devolution to all parts of England**”** with a framework that encourages every area to have a mayor or strategic authority, and promises to **“**widen and deepen devolution across England**”**, giving local leaders more control over housing, transport, skills and other levers of growth (Ministry of Housing, Comminities & Local Government, 2024). This is often dubbed a “devolution revolution” within England, but crucially it is not based on an English national identity project; rather it is a pragmatic governance reform. There is no English Parliament equivalent to Scotland’s; instead, England-only laws were handled through **“**English Votes for English Laws**”** procedures (EVEL, introduced in 2015 to let only English MPs vote on English-only matters, though this was later suspended in 2021).

The lack of an English devolved parliament means English national identity tends to be expressed differently. In the 1990s and 2000s, opinion polls showed a rise in those in England who see themselves as English rather than British, partly as a reaction to devolution elsewhere. By the 2010s, only 43% of people in England chose “British” as their main identity (down from 65% in 1992), indicating more people defaulting to “English” though researchers note this drop largely predates devolution and is not solely caused by it (Curtice, Phillips, Park, Bryson, & Clery, 2013). A sense of grievance has been reported among some English voters, feeling that Scotland, Wales and Northern Ireland get disproportionate public spending or political attention. Indeed, the proportion of English respondents who think Scotland gets “more than its fair share” of spending doubled from 2000 to 2012 (to 44%) (Curtice, Phillips, Park, Bryson, & Clery,

2013). This could be termed an “English backlash,” yet it is not strictly tied to an English-nationalist movement, surveys found that this resentment is not significantly higher among those who identify strongly as English versus those who identify as British (Curtice, Phillips, Park, Bryson, & Clery, 2013). In other words, it’s a general public opinion trend rather than an organized identity politics. Nonetheless, English identity has found indirect political expression in causes like Euroscepticism and populist rhetoric about sovereignty. Some analysts argue that Brexit was, in part, an English nationalist moment: given that England’s voters (along with Wales) tipped the balance in favor of Leave, whereas Scotland and Northern Ireland voted Remain. The Brexit campaign’s emphasis on “taking back control” appealed to a sense of British (and English) self-determination, which for some English voters may have been intertwined with a nascent English-national feeling that England should not be held back or vetoed by outside forces (be it Brussels or even Scots/Welsh preferences).

It is illuminating to compare the United Kingdom’s devolution with the federal system of the United States, especially regarding how national and subnational identities are balanced. The United States has a long-established federalism, where power is constitutionally divided between the federal government and the 50 states. Each state has its own government with constitutionally protected powers (ex. legislating on education, policing, etc.), and this division cannot be unilaterally altered by the federal government. By contrast, the United Kingdom’s devolution is statutory and asymmetric: the powers of Scottish, Welsh, and Northern Irish institutions are defined by Acts of Parliament and, in theory, can be altered or even abolished by Westminster (parliamentary sovereignty remains formally intact). This makes United Kingdom devolution more fragile legally – a fact underscored by the term “quasi-federal” often used to describe the United Kingdom’s current state (O'Neill, 2004). In practice, however, devolution has

become politically entrenched in the United Kingdom, and it would be almost impossible now to revoke it without a serious crisis.

One key difference is symmetry. U.S. federalism is (with minor exceptions) symmetric – every state has the same constitutional status and powers. United Kingdom devolution is uneven: Scotland enjoys the most extensive autonomy (including its own legal system and tax powers), Wales historically had less (although its increasing), Northern Ireland has autonomy but under unique rules, and England has none at the national level. This asymmetry can breed tensions, as we saw with the West Lothian Question (non-English MPs voting on English laws) (Ministry of Housing, Comminities & Local Government, 2024). The U.S. does not face an equivalent of West Lothian because all representatives in Congress legislate on federal matters (states handle their own local matters separately). Another difference lies in identity formation. American identity, while allowing for state pride (e.g. Texans, Californians), has a strong overarching national narrative; partly because the federal system was formed from colonies coming together, forging a new nation with a common identity over centuries (helped by factors like a single language and melting-pot culture). Secessionist sentiments, which did exist (famously leading to the Civil War), are now extremely fringe in the United States, and opposition to Washington is typically about policy or partisan difference, not about a state wanting to leave the Union.

Lastly, the concept of "states' rights" in U.S. history carries the idea of protecting state sovereignty against federal overreach. In the United Kingdom, there is no equivalent legal doctrine; devolved powers can be overruled by Parliament. But there has been an emerging norm that Westminster will not normally legislate on devolved matters without consent of the devolved legislature. This is a political convention, not a hard rule. It has generally been respected in the 2000s, but notably, during the Brexit process the United Kingdom government chose to override

devolved objections on key legislation (such as the EU Withdrawal Act and Internal Market Act). This caused an outcry from devolved leaders who saw it as an assault on the spirit of devolution. In a federal country, the central government could not so easily yank powers back due to constitutional safeguards; in the United Kingdom, it can illustrating the more precarious nature of devolved rights compared to U.S. states' rights. While both U.S. federalism and United Kingdom devolution seek to balance unity and regional diversity, the United Kingdom's model is newer, more asymmetrical, and politically driven by national identity claims, whereas the U.S. model is older, relatively uniform, and identity is more nationalized. The United Kingdom's arrangement is arguably still evolving towards something more federal-like, but whether it can fully satisfy the national identities of its constituent countries within one state remains a live question.

Brexit has been a key point for the United Kingdom's territorial politics, bringing devolution and national identity issues to the forefront. The 2016 EU referendum exposed stark regional/national differences: England and Wales voted Leave, Scotland and Northern Ireland voted Remain. The outcome: the United Kingdom as a whole leaving the EU; was seen by many in Scotland and Northern Ireland as a democratic deficit, reinforcing the sense that their national preferences can be overridden by the English-majority decision. This directly affected conceptions of identity: for instance, more Scots began to view independence as a way to rejoin the EU and assert their distinct political identity separate from a "Brexit Britain." In Northern Ireland, Brexit raised the prospect of a hard border on the island of Ireland, which was averted by the Northern Ireland Protocol keeping Northern Ireland aligned with many EU rules. That solution, however, created a regulatory barrier between Northern Ireland and the rest of the United Kingdom, enraging unionists who felt Northern Ireland's British identity was being

undermined. Conversely, nationalists saw an opportunity: increased all-Ireland integration and talks of a future referendum on Irish reunification gained traction in mainstream discourse for the first time in decades.

Brexit also strained the devolution settlement in more systemic ways. When powers returned from Brussels, disputes arose over whether they should reside with Westminster or the devolved governments. Westminster's answer was the United Kingdom Internal Market Act 2020 (United KingdomIMA), a law ensuring free flow of goods and services across the United Kingdom, but in doing so, it set United Kingdom-wide regulatory limits that curtailed devolved autonomy. Scholars Dougan, McEwen et al. described the Act as "restrictive and potentially damaging to the devolved legislatures, effectively constraining their ability to set different standards in their territories, while the United Kingdom government remains free to do so for England" (Dougan, Hunt, McEwen, & McHarg, 2022). In other words, the devolved governments now face pressure to conform to norms set by Westminster for the sake of a unified United Kingdom market, tilting the balance back toward central control. Importantly, the United Kingdom government pushed through such legislation without consent from Edinburgh or Cardiff. This was not the first time since 2016, the Brexit process saw multiple instances of Westminster legislating in devolved areas over devolved objections. Such actions have fueled resentment in Scotland and Wales, where it is viewed as disrespect for their national autonomy. In Wales, Brexit initially had majority support (Wales voted Leave), but the Welsh Government later grew critical of how Westminster handled the aftermath, siding with Scotland in warning that the Internal Market Act undermined devolution. The Plaid Cymru party and some in Welsh Labour portrayed it as an affront to Welsh nationhood. Meanwhile, in England, Brexit was often tied to a revival of sovereignty and perhaps an English-led vision of the United Kingdom. A

reflection of how identity narratives intertwined (British vs European, and for some English vs Brussels).

Overall, Brexit has changed views by highlighting the fragile equilibrium of the United Kingdom's union. It prompted many in Scotland and Northern Ireland to question if their aspirations align with the direction of the United Kingdom. For instance, after 2016, support for Scottish independence saw a notable rise. In Northern Ireland, while a majority still favored the status quo, surveys showed increased openness to discussing unity with Ireland, especially if Brexit proves economically disruptive. Even in Wales, which historically had low support for independence, there was an uptick in pro-independence sentiment post-Brexit (though still a minority). At the same time, the practical challenges Brexit posed have also led to greater cooperation among devolved administrations on common interests; for example, the Scottish, Welsh, and Northern Irish leaders formed a joint front at times to demand more say in United Kingdom-wide decisions. Devolution's role as the mediator of national identity has thus become even more crucial and contested in the Brexit era. Westminster's willingness to reassert unitary control on some matters has made devolved leaders warn of an erosion of the devolution settlement (Dougan, Hunt, McEwen, & McHarg, 2022), feeding narratives in Scotland and Wales that Westminster cannot be trusted to respect their nations' choices. In summary, Brexit has intensified the interplay between devolution and national identity: it has emboldened separatist sentiments in some quarters, tested the limits of the United Kingdom's quasi-federal structure, and proven that the question of how the United Kingdom's nations coexist is far from settled.

Over the past quarter-century, devolution has become a defining feature of British politics, fundamentally altering the state without (yet) breaking it apart. It was born from historical struggles and aspirations of the United Kingdom's constituent nations; a response to

the enduring fact that “British” identity has always been a composite of English, Scottish, Welsh, and Irish identities. Devolution acknowledged those identities by granting self-rule, and in doing so it transformed how the Union operates. In the past, the United Kingdom was a centralized unitary state where conceptions of national identity had little formal outlet in governance (except in Northern Ireland’s troubled home rule experiments). Today, the United Kingdom resembles a union of four nations with different degrees of autonomy. This change is evident in everyday governance: Scots and Welsh take pride in policies made at Holyrood or the Senedd that reflect their values (for example, Scotland’s pioneering climate targets or Wales’s curriculum emphasizing bilingual education), and Northern Ireland’s government structure itself is a balance of identities. These are tangible ways that devolution has intertwined with national identity.

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